

26PR00335 Matter of The Willy & Grete Norup Trust

County: sonoma

Division: Probate

Hearing date: 2026-07-10

Motion: Petition for Appointment of Successor Trustee

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Petition for Appointment of Successor Trustee

Tentative Ruling: This matter is CONTINUED to October 23, 2026 at 9:30 a.m. in Department 63. As an objection has been filed, this is now a contested matter. The parties are ordered meet and confer and to comply with local rules 6.2.F.2 and 6.2.F.3 in advance of the continued hearing. The Court is also aware a new petition was filed by objector on July 8, 2026, which is also set October 23, 2026.

While the Court is not proceeding to the merits at this time, it notes for the benefit of the parties that even if it were inclined to order that Kim Norup is the sole successor trustee, bond must be addressed. The petition presently does not address bond, and there is no bond provision in the trust. As for the disclaimer trust, it is the Court's view that the fifth amendment, executed unilaterally by the surviving settlor, is invalid (further discussed below.) If petitioner is determined to be the rightful trustee the bond amount would be for all but the disclaimer trust (i.e. the survivor's trust, bypass trust, and the main trust, which were amendable by the surviving settlor). Under the fifth trust amendment, affecting all but the disclaimer trust, Kim Norup is not named as successor trustee and bond is required. California Probate Code §15602(a)(3). As petitioner is already named a successor trustee under the disclaimer trust, bond there would not be required. California Probate Code §15602(a).

Petitioner is directed to serve and file a verified supplement, at least seven (7) court days in advance of the continued hearing, indicating the value of the trust res (aside from the res held in the disclaimer trust) so that, if the petition were to be granted, bond could be set in that amount.

The petitioner also seeks an order that the trust is valid. The fourth and fifth amendments, to the extent they purport to be amendments to the disclaimer trust, are invalid. Trust Article Three section 3.2 states the disclaimer trust becomes irrevocable at the death of the first settlor to die. The first settlor died prior to the execution of the fourth and fifth amendments, and the surviving settlor did not have the authority to amend the disclaimer trust unilaterally. Therefore, with respect to the validity issue, at most the Court would be inclined to order that the trust is valid except for the fourth and fifth amendments to the extent they purport to amend the disclaimer trust. The petitioner is invited to address this issue in the aforementioned verified supplement. Of course, the Court understands that the entirety of the fifth amendment is also now in dispute in light of the newly filed petition by objector.